

PROTESTING FOR NIRBHAYA Candlelight vigil at Jantar Mantar in Delhi, Dec. 29, 2012


SPECIAL REPORT

PORTRAITS of COURAGE

They may have been battered and bruised by rapists on the prowl, but they haven't given up on hope, justice and life itself. Six extraordinary examples of defiance and fortitude in the face of adversity, from across the country.

FROM THE ARCHIVES
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Portraits of Courage

They are calling her "Nirbhaya (fearless), Damini (lightning) and Amanat (precious)". There is simply no one word that could encapsulate her extraordinary courage. Scores camping outside Safdarjung Hospital's Gate Number 7 prayed for her recovery, not just to see the six rapists get what's coming their way, but to witness the change she may just inspire: Bolder new laws, more sensitive police administrations and a society that respects and treasures its women.

–Asit Jolly et al

Code of Criminal Procedure and the Evidence Act. Their outcome was the Criminal Law (Amendment) Act, 2013, which extended the scope of sexual violence to include acid attacks, stalking and sex trafficking and broadened the definition of rape beyond just penile penetration, introduced stricter punishment, including the death penalty for repeat offenders, and sought to make the judicial process more survivor-centric. It also abolished the invasive and archaic "two-finger test", a remnant of an era that questioned a victim's sexual history.

In the end, four of Nirbhaya's rapists were hanged to death in 2020—one died in prison, another was tried as a minor. But have the amended laws brought any change to the lives of the country's women? India received a rude answer to that question just this August, when another Nirbhaya, in another time, another place, was raped as cruelly and killed in the dead of the night at the R.G. Kar Medical College and Hospital in Kolkata. It was a grim reminder that the task is far from done, that the law can only do so much. If the police were recording up to 25,000 rape cases a year in India in 2012, as National Crime Records Bureau (NCRB) data shows, that number has only risen to over 31,000 cases, or 86 cases daily, 12 years down the line. Conviction rates, however, remain dismally low at 27 per cent. Till we bring about a change in social mindsets, teach our children the value of gender equality and respect, sexual violence in this country will remain a horrifying reality. ■